

## CONDUCT OF CONDUCT The-WEB

### INTERPRETATION OF TERMS

In the interpretation of these Rules, unless the context otherwise indicates:

- a) “**Act**” means the Sectional Titles Act 95 of 1986, as amended from time to time, and any regulations made and in force thereunder;
- b) “**Academic Learner**” means a learner enrolled as an academic student at a tertiary institution in and around Stellenbosch;
- c) “**Body Corporate**” means the Body Corporate for The-WEB sectional title scheme;
- d) “**Common Property**” means the common property as shown on the Sectional Title Plan;
- e) “**Development**” means the buildings comprising the Development known as The-WEB as well as  
its common property;
- f) “**Developer**” means Varkblom (Pty) Ltd with registration  
number 2017/234752/07, or its successors in title or assigns;
- g) “**Development**” means the sectional title scheme and any phases, if applicable for the  
proposed sectional title scheme, The-WEB to be established on the Land;
- h) “**Development Period**” means the period from the date on which the Sectional Title  
register is opened until the date that the Developer has transferred the last Unit owned  
by  
it in the Development, or the date that the Developer notifies the Body Corporate in  
writing;
- i) “**Land**” means the Erf 3223 Stellenbosch, situated in the Municipality and Division of  
Stellenbosch, Western Cape Province;
- j) “**Lifestyle Centre**” means the exclusive use areas associated with the commercial  
section  
and include inter alia the library, study hall, gym, games rooms and e-gaming centre.
- k) “**Management Act**” means the Sectional Titles Schemes Management Act No. 8 of  
2011, as

amended from time to time, and any regulations made and in force thereunder;

l) “**Managing Agent**” means the Managing Agent as appointed by the Trustees from time to

time to administer the affairs of the Body Corporate;

m) “**Management Company**” means The-WEB Stellenbosch Proprietary Limited with Registration Number 2022/288412/07 or its successors in title or assigns.

n) “**Management Rules**” means the Management Rules for the sectional title scheme, The

One;

o) “**Occupier or Resident**” means an Academic Learner occupying any Residential Section in

The-WEB. During the academic year no Occupier or Resident over the age of 35 (Thirty Five)

will be allowed to occupy a Residential Section;

p) “**Owners**” mean the registered owners of the units, who are responsible for their families,

tenants, Residents, service providers etc, that may be in the Development;

q) “**Parked**” refers to any mode of transport which is stationary in one position either in a

demarcated parking space or on common property for any length of time;

r) “**Resident Guideline**” means the guidelines, attached hereto as Annexure A.

s) “**Section**” means a section shown as such on the sectional plan;

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t) “**Trustees**” mean Trustees of the Body Corporate from time to time as more fully referred

to in the Management Rules;

u) “**Unit**” means a section together with its undivided share in the common property apportioned to that section in accordance with the quotas of the section;

v) Capitalised terms used but otherwise not defined herein shall bear the meaning ascribed to

those terms in the Management Rules.

w) words importing -

a. the singular number only shall include the plural, and the converse shall also apply

b. the masculine gender shall include the feminine and neuter genders and the neutral gender shall include the masculine and feminine genders

x) words and expressions, to which a meaning has been assigned in the Act, shall bear the

meaning assigned to them;

y) the headings to the respective Rules are provided for convenience of reference only and are

not to be taken into account in the interpretation of the Rules.

## THE-WEB BODY CORPORATE CONDUCT RULES

### 1. INTRODUCTION

1.1 The Body Corporate has been established and all owners are members of the Body Corporate.

1.2 The-WEB sectional title scheme is predominantly student accommodation that will be managed

with the best interest of Residents in mind. The aim to create in The-WEB an environment

conducive to learning excellence and academic success, as well as the formation of a healthy

and well student community, cannot be overemphasized. The-WEB as a student community

forms part of student life in Stellenbosch. The academic life of all students is to a great extent

affected by their (out-of-class) living environment. The-WEB provides the opportunity for a

transformative student experience where students practise the behaviours of a constitutional

democracy, strengthen social cohesion through participating and living in a healthy student

community which is diverse, and practise the skill to effect positive change in the community

(through empowering of all occupiers and enabling a community to accept new knowledge

and establish practices for a conducive and inclusive living environment). The student community in The-WEB offers opportunities for the academic, personal, and social development and integration of the Residents. These structures also enhance student engagement with the tertiary institutions' academic staff and, as such, play a significant role in

student success and the development of graduate attributes.

1.3 The areas which will be used by the Residents will be divided into the Body Corporate

Common Property and the Lifestyle Centre. The Lifestyle Centre will be independently owned

and the Rules of the Lifestyle Centre will be in line with the Rules set out in this document, but

can be amended from time to time by the aforementioned owners of the Lifestyle Centre.

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1.4 These Rules are binding on all Owners, Occupiers and their visitors and service providers.

Occupiers are responsible for the conduct of their visitors and service providers. Any breach of these Rules by a visitor, service provider or Occupier who is not an Owner, will be attributed to the relevant Owner who will be held responsible for such breach.

1.5 These Rules will be enforced by the Trustees. Any infringement of these Rules may result in the offender being penalised with Penalty Levies and/or Conduct Transgression Levies or such other sanction as may be deemed appropriate by the Trustees and as more fully provided for in the Rules.

1.6 If, as a result of a breach of any of these Conduct Rules by any Owner or Occupier of a Section,

the Trustees instruct an attorney, the defaulting Owner shall be liable for all costs and charges

of whatsoever nature on an attorney client scale incurred by the Trustees as a result thereof.

1.7 The Trustees have been elected by the Owners to fulfil a duty. Any interference in this regard

or any threats made to and / or any damage to the Trustees' person or property will result in

legal action.

## **2. FINANCES / LEVIES**

2.1 All levies owed to the Body Corporate are payable monthly in advance by not later than

the first day of each and every month.

2.2 Owners shall not be entitled to withhold payment of levies payable to the Body Corporate

for any reason (including and without limiting the generality of the foregoing by reason of

any alleged failure by the Body Corporate to provide any services) and shall not be entitled

to apply set-off.

2.3 Levy invoices shall include and not be limited to Penalty Levies, Conduct Transgression

Levies, damages to infrastructure, and other payments due to the Body Corporate.

2.4 Owners who appeal against imposed Penalty Levies and/or Conduct Transgression Levies

shall do so in writing to the Trustees.

2.5 For the duration of the Development Period, the levy amount may not be increased without

the prior written consent of the Developer.

## **3. SECURITY**

### **3.1 Access control for Owners and Occupiers:**

3.1.1 All Owners and Occupiers living in the Development are required to be registered with

security for access control into and out of the Development. Owners and Occupiers may not

request the security guards on duty to open for them without following correct access control procedures.

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3.1.2 Additional security registration can be obtained for people other than Owners at an

additional cost.

### **3.2 Access control for employees, employed by Owners and Occupiers :**

3.2.1 All Owners and Occupiers are required to make use of the exclusive service provider provided for the cleaning of their Units. No access will be granted or allowed for domestic workers and/or cleaning staff except for the staff employed by the exclusive service provider.

### **3.3 Access control for family members, guests and service providers:**

3.3.1 Family members, guests and service providers may not be registered on the Body Corporate's access control system. Access may be provided through the approved visitor management system installed for access control. Only family members of Residents who live in the Development may be registered for access.

3.3.2 Requests for special dispensation for regular visitors must be provided in writing to the Trustees for consideration.

3.3.3 Owners and Occupiers may not use their own issued discs or finger prints or the like to allow access for their family members, guests, and/or service providers.

Owners and Occupiers must at all times ensure that the Development's correct access control procedures are strictly followed as protocol.

3.3.4 The Trustees reserve the right to limit the aforementioned visitor access by time of

day and/or by quantity of visitors allowed per Unit or in aggregate.

3.3.5 Owners and Occupiers will be notified of all transgressions in writing.

**3.4 Access control for contracted and permanent service providers:**

3.4.1 Contractors who have been appointed by the Trustees of the Body Corporate.

Management Company or the Developer and who have a signed service level agreement in place with the Body Corporate, Management Company or the Developer may be granted access onto the Development's access control system in order to perform their duties.

3.4.2 Permanent service providers who have been appointed by the Trustees of the Body Corporate, Management Company or the Developer and who have a signed service level agreement with the Body Corporate, Management Company or the Developer may be granted access onto the Development's access control system in order to perform their duties.

3.4.3 Access hours will be at the sole discretion of the Trustees who will grant such access based on the required service delivery.

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3.4.4 All contracted and permanent service providers must provide the Body Corporate with the names of all workers and other employees to be engaged in maintenance and service delivery activities within the Development. Only workers and employees who have been registered and/or have been issued with an approved identity card may be engaged.

**3.5 Access control for emergency services:**

3.6.1 The Body Corporate will grant automatic access to the Fire Department, ambulance and emergency vehicles and to members of the South African Police Service. Security will at all times escort these emergency services to their place of destination within the Development.

### **3.6 Access control for Eskom, the local municipality, the Sheriff of the Court and the Post**

#### **Office:**

3.6.1 Access will be provided to employees from Eskom, the local municipality, the Sheriff of

the Court and the Post Office after security has first confirmed and notified the Managing

Agent and verified their identity and job card statuses. Access will be done in accordance with the Access Control policy of the Development.

3.7 Owners and Occupiers must comply with all security measures from time to time as implemented by the Body Corporate in terms of the Access Control policy, as approved by the

Body Corporate from time to time.

3.8 Visitors must at all times be accompanied by an Owner or an Occupier.

3.9 Present access to the Development will be provided via the vehicle boom gates and main reception only.

### **4. ANIMALS. REPTILES AND BIRDS**

4.1 An Owner or Occupier of a Section shall not keep any animal, reptile or bird in a Section or on

the Common Property.

4.2 Owners and Occupiers suffering from a disability and who reasonably requires a guide,

hearing or assistance dog must be considered to have the trustees' consent to keep that animal

in a section and to accompany it on the common property.

### **4.3 Withdrawal of Permission / Imposing of Penalty Levies and/or Conduct Transgression**

#### **Levies / Removal of Pets**

The Trustees may withdraw such approval in the event of the contravention of any condition



outlined by the Trustees. The Trustees reserve their rights in terms of the imposing of Penalty

Levies and/or Conduct Transgression Levies and/or ordering the removal of pets in the

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event of non-compliance of the above conditions, at their sole and final discretion, but within

reasonable means.

#### **4.4 Liability**

The owner of any animal, reptile or bird that causes any injury, damage or inconvenience will

be solely liable for such injury, damage or inconvenience. Any Owner or Occupier must ensure

that their animals are not a source of disturbance (noise or otherwise) to other Owners or

Occupiers.

#### **4.5 Trustees Decision Binding**

4.5.1 The Trustees' decision regarding any matter with regards to animals, reptiles and birds shall be binding.

4.5.2 An Owner aggrieved by the Trustees' decision shall have the right to appeal the decision with the Community Schemes Ombud in terms of the Community Schemes Ombud Services Act 9 of 2011("CSOS Act").

### **5. REFUSE DISPOSAL**

5.1 An Owner or Occupier of a Section shall:

5.1.1 Maintain in a hygienic and dry condition, receptacles for refuse within his Section, their exclusive use area or on such part of the Common Property as may be authorised by the Trustees in writing.

5.1.2 Ensure that all refuse is placed and sealed securely in a plastic municipal style bag

intended for refuse disposal which bags will not leak given the nature of the refuse

being disposed.

5.1.3 Ensure that before refuse is placed in such receptacle it is securely wrapped, or in the case of tins or other containers, completely drained.

5.1.4 For the purpose of having the refuse collected, place such receptacle within the area designated for refuse collection (should the service provider be unable to do so) and at the times designated by the Trustees.

5.1.5 Not place any large cardboard, polystyrene or builder's rubble into the receptacle in the designated refuse collection area but dispose of this in his/her personal capacity.

5.1.6 Refuse may not be dumped on the streets or elsewhere in the Development.

5.1.7 The burning of refuse is not permitted.

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## **6. VEHICLES**

### **6.1 Parking**

6.1.1 No Owner or Occupier shall park or stand any vehicle on the Common Property or allow any vehicle to be parked on the Common Property or demarcated parking bays, without the written consent of the Trustees, except in respect of those areas of the Common Property specifically demarcated for that purpose. No parking will be tolerated on the Common Property grass areas, or in parking bays specifically designated for the use of other Sections without the written permission of the occupant of the Section concerned.

6.1.2 Visitor parking is intended for visitors and is not allowed to be used by Residents or

their visitors on a regular basis. For this reason, Owners should ensure prospective tenants do not have more vehicles than parking bays allocated to the Unit. The Body Corporate and Trustees may impose a monthly parking rental fee (the amount to be determined from time to time by the Trustees) via levy accounts on Owners whose

Residents are found to have more vehicles than allocated parking bays and are detected using visitor parking on a regular basis, with such fee being imposed until it can be confirmed the parking violation has been resolved, at their sole and final discretion. For the avoidance of doubt, the aforementioned fee will be in addition to any parking-specific levy charged to an owner for their exclusive use parking area.

6.1.3 The Trustees may, for this purpose, from time to time demarcate areas of the Common Property where the parking of motor vehicles is permitted, and similarly demarcate other areas of the Common Property where the parking of motor vehicles is not permitted. There will be a monthly parking levy penalty payable as set out in the Management Rules.

## **6.2 Vehicles on Common Property**

6.2.1 Further to clause 6.1 above, no owner or occupier shall leave any vehicle parked and/or standing and/or abandoned on the Common Property for a period longer than 30 minutes subject to clause 6.7.

## **6.3 Leaks**

All Owners and Occupiers of Sections shall ensure that their vehicles, and the vehicles of their

guests, do not drip oil or brake fluid onto the Common Property and/or Exclusive Use areas or

in any other way deface same. If an Owner or Occupier of a Section contravenes this rule they

will compensate the Body Corporate for the fair reasonable and necessary cost of restoring /

repairing / cleaning of such Common Property.

## **6.4 Repairs**

No Owner or Occupier of a Section shall be permitted to dismantle or effect any major repairs

to any vehicle on any portion of the Common Property, an exclusive use area or in a Section,

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provided that the normal washing of vehicles is permitted in accordance with any water restrictions which may be imposed by any local authority.

### **6.5 License**

No Owner or Occupier of a Section shall be permitted to drive any vehicle on the Common

Property or on any exclusive use area without a valid driver's license for that vehicle and no

visitor or family member will be allowed to drive any vehicle into the Development without a valid

driver's license and valid motor vehicle license.

### **6.6 Speed and Dangerous Driving:**

6.6.1 All vehicles entering and exiting the Development are obliged to adhere to the 20km per

hour speed limit of the Development. Speeding, reckless and inconsiderate driving (which includes the spinning of tyres, handbrake turns, unnecessarily loud music and driving under the influence) on the Common Property or any exclusive use area are strictly prohibited, and offenders could face legal action.

6.6.2 Notwithstanding the aforementioned, an Owner or Occupier shall indemnify and hold harmless the Body Corporate and other Members for any damages suffered as a result of any act or omission in this regard.

### **6.7 Obstruction**

6.7.1 The Owner or Occupier of any Section shall not park or permit to be parked any vehicle, or place any item or article, in such manner as to obstruct any passageways, roads, exits from or entrance to the building/s, or any entrance to or exit from any Section or authorised parking bay of any other Owner or lawful Occupier.

6.7.2 The Trustees may in the event of contravention of this Rule, impose a penalty on the

Owner or Occupier of the Section which the driver of the vehicle was visiting at the

time.

## **6.8 Other modes of transport**

The Stellenbosch Municipality promotes improved pedestrian and cycling facilities in the precinct. Residents are encouraged to make use of non-motorised transport and the university shuttle route serving the area. The Trustees may issue further guidelines from time to time.

Precinct, that identifies transport projects focused on improvement of pedestrian and cycling

facilities and activities in the area. The Transport Master Plan is aimed at reducing private car

usage over time, to create a holistic pedestrianised environment connected to the external

The Stellenbosch Municipality promotes improved pedestrian and cycling facilities in the precinct. Residents are encouraged to make use of non-motorised transport and the university shuttle route serving the area. The Trustees may issue further guidelines from time to time.

shall provide and implement non-motorised transport facilities along a shuttle route approved by the Stellenbosch Municipality. Therefor the following will be applicable:

6.8.1 No Caravans and boats are allowed to enter the Development. Trailers may only be

parked within the Owner's allocated parking area and should not protrude or obstruct any other Owner's parking area.

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6.8.2 No unlicensed modes of transport are permitted to be utilised within the Development.

6.8.3 No vehicle with a tonnage over 3.5 (three point five) tons will be allowed to enter the Development. This restriction will not apply to emergency services vehicles.

6.8.4 Bicycles are only allowed to be ridden on designated roadways, and not on pathways designated for pedestrian traffic only. Bicycles ridden outside of daylight hours must be fitted with a suitable headlight and taillight. Bicycle riders must wear

a suitable safety helmet, and children under the age of 12 (twelve) when riding bicycles (or engaged in any other activities on the Common Property) must at all times be accompanied by an adult.

6.8.5 The Trustees reserve their rights in terms of the imposing of Penalty Levies and/or Conduct Transgression Levies (in terms of clause 32) and/or removal of any of the above mentioned unauthorised modes of transport.

### **6.9 Motor Vehicle Accidents**

The Trustees of Body Corporate are not responsible for any motor vehicle accidents or any

incident relating to the use of a motor vehicle as defined in the Road Traffic Act which may

occur within the Development. Any owner or occupier uses the parking facilities at their own risk.

### **6.10 Use of vehicles**

6.10.1 All traffic circles are to be used in a clockwise direction.

6.10.2 Excessive revving of vehicles and/or motorbikes is prohibited.

6.10.3 No quad bikes, motorbikes or motorcycles or other vehicles may be ridden on footpaths.

6.10.4 All vehicles must come to a complete stop at the intersections where stop signs have been installed. Fines will be imposed. Fines not paid within 7 (SEVEN) days may be added to the levy account of the Owner.

### **6.11 Intersections**

All intersections are to be treated as stop streets.

## **7. PATHWAYS**

7.1 Only pedestrians are permitted on paved pathways.

7.2 No motor vehicles are permitted on any pathways.

7.3 Pedestrians have right of way.

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## **8. PARKING BAYS AND EXCLUSIVE USE AREAS**

8.1 The Developer has, in terms of sections 10 (7) and 10 (8) of the Management Act, created

exclusive use areas, as set out in the Management Rules of the Development.

## **9. DAMAGE. ALTERATIONS. ADDITIONS TO THE COMMON PROPERTY**

### **9.1 Damage and Vandalism**

9.1.1 Any form of vandalism, damage to or destruction of property of the Development is

forbidden. Offenders will be held liable for financial restitution and could face criminal action.

9.1.2 An Owner or Occupier will be liable for any damage caused within the Development

by themselves or their guests/invitees or any person gaining access to the Development through them. As such, Owners or Occupiers will be held responsible for the care and condition of their Units and the Common Property which they occupy, as well as the furniture, appliances and equipment therein and will be required to pay for the repair (or replacement, where applicable) to any Unit, furniture or equipment which was damaged.

9.1.3 An Owner or Occupier of a Section shall not mark, paint, drive nails or screws or the

like into, or otherwise damage or alter any part of the Common Property, without first having obtained the written permission of the Trustees.

9.1.4 An Owner or Occupier of a Section will also be responsible for any damage caused to any unit or the common property of the Development by their guests.

### **9.2 Security Gates / Bars / Devices**

9.2.1 An Owner or Occupier may not without the consent of the Trustees fit any security door, burglar bars or sliding door to a Section without the written consent of the Trustees.

9.2.2 Notwithstanding clause 9.1.3, an Owner or person authorised by him / her, may

install:

9.2.1.1 any locking device, or other safety device for the protection of his / her Section;

OR

9.2.1.2 any screen or other device to the inside of his / her Section to prevent the entry of animals or insects provided that the Trustees have first approved in writing the nature, design and colour of the device and the manner of its installation.

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9.2.3 An Owner or Occupier of a Section will not, without the Trustees' written consent, make

a change to the external appearance of the Section or any exclusive use area allocated to

it,.

9.2.4 The inside of the Unit belongs to the Owner and the Owner may within reason erect

approved security measures of his / her choice – however, the Trustees may intervene should the choice be damaging to the harmony and aesthetics of the Development.

## **10. APPEARANCE FROM THE EXTERIOR**

### **10.1 Appearance**

The Owner or Occupier of a Section shall not place or do anything on any part of the Common

Property, including patios, stoops, gardens, or fences which, in the discretion of the Trustees, is

aesthetically displeasing or undesirable when viewed from the exterior of the Section. Any

furnishings and/or decorations in a Unit which are visible when viewed from the exterior of a



Unit, or visible to the public, must comply with the general aesthetics of the Development. Coloured

curtains, blinds, drapes or any kind of window treatment are required to have a white, coloured backing/lining which is visible when viewed from the exterior of a Unit and any additional specifications to be imposed by the Body Corporate from time to time.

## **10.2 Fences**

No Owner or Occupier of a Section shall erect or allow to be erected any form of additional

fencing on any part of the Common Property or in any exclusive use area.

## **10.3 Lighting**

No Owner or Occupier shall erect or cause to be erected or installed any lights or lighting

apparatus on any part of the Common Property or exclusive use area without the written consent of the Trustees first having been obtained.

## **10.4 Structure Erection**

No Owner or Occupier shall erect any structure of any nature whatsoever, including but not

limited to swimming pools, umbrellas, braai facilities, saunas and Jacuzzis, which are of a

permanent or semi-permanent nature, without the written consent of the Trustees first having

been obtained.

## **10.5 Antennas, Aerials, Satellite Dishes, Solar Water Heating and Air Conditioning Units**

10.5.1 No Owner, Occupier or Resident may install, cause or allow to be installed antennas,

aerials, satellite dishes, solar water heating or air conditioning units or anything of a similar nature:

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10.5.1.1 on the roof of their Units

10.5.1.2 in the garden area of a Unit

10.5.1.3 in any exclusive use area

10.5.1.4 in any Common Area or elsewhere on or about the Estate.

## **10.6 Storage**

10.6.1 No Owner or Occupier shall store or allow to be stored any item on his balcony, other than

pot plants and garden furniture, having regard to the provisions following herein.

Balconies are not to be used for the storage of items such as boxes, bicycles, drying or laundry racks, laundry, cleaning equipment, or tools etc.

10.6.2 An Owner or Occupier of a Section shall be permitted to place and keep on his balcony such

pots and pot plants and garden furniture, being furniture meant and designated for exterior use, as may be approved by the Trustees from time to time.

10.6.3 The Trustees reserve the right to instruct an Owner or Occupier to remove such pot plants,

pots or garden furniture or equipment, or items of a similar nature from his / her balcony or exclusive use area, if in the discretion of the Trustees, such item or items are undesirable when viewed from the exterior of a Section.

## **10.7 Air conditioning units**

10.7.1 Should the Trustees and/or the Developer elect to allow the installation of an air conditioning

unit, no Owner, Occupier, or Resident will continue with said installation without the prior

written consent of the Trustees and/or Developer. The installation of the air conditioning unit

will be subject to such specifications (including the proposed location thereof) as set out by the

Trustees and/or Developer from time to time. The Trustees and/or Developer shall notify the

Members of such allowance together with any prescribed specifications.

Notwithstanding any

such allowance by the Trustees and/or Developer or any other provision of these Rules or the

Management Rules, the Trustees and/or Developer shall at any time, by written notice to the

Members, Owners, Occupiers, or Residents, be entitled to revoke such allowance in its sole and

absolute discretion.

10.7.2 Clause 10.5.1 shall not prohibit the Trustees and/or Developer from installing, causing or

allowing to be installed air conditioning units.

## **11. SIGNS AND NOTICES**

No Owner or Occupier of a Section save for the owner of the Commercial Section, shall place or

allow to be placed, any sign, notice, billboard, poster or advertisement of any kind whatsoever

on any part of the Common Property or on a Section, so as to be visible from the exterior of the

Section.

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## **12. LITTERING**

12.1 No Owner or Occupier of a Section shall deposit or allow to be deposited or thrown on the

Common Property, any rubbish including dirt, cigarette butts, food or food scraps or any litter

whatsoever.

12.2 The Owner or Occupier of any Section shall not shake or dust or beat carpets or mats over the

balconies or walls or through the windows of any Section.

### **13. LAUNDRY**

13.1 No Owner or Occupier of a Section shall hang any washing or laundry or any other items on any

part of the Common Property so as to be visible from the exterior of the building or from any

other Section. Laundry (including the use of clothes horses and the like) cannot be left out on

balcony areas or the like for drying purposes. An Owner or Occupier of a Section shall not erect

his / her own washing lines.

13.2 The Trustees reserve their rights in terms of ordering the removal of items mentioned above.

### **14. STORAGE OF FLAMMABLE MATERIAL AND OTHER DANGEROUS ACTS**

#### **14.1 Storage**

An Owner or Occupier of a Section shall not store any flammable or dangerous material, or

permit (or allow to be done) any dangerous act in the building or on the Common Property in

quantities which may increase the rate of the premium payable by the Body Corporates on any

insurance policy.

#### **14.2 Firearms and weapons**

Firearms, air or spring, propelled weapons, explosive devices or anything else that resembles a

firearm or dangerous weapon, are not allowed on the premises under any circumstances.

#### **14.3 Electricity Supply**

No Owner or Occupier of a Section may tamper or have any work or repairs done to any electrical supply or apparatus that serves the Common Property. Any electrical faults on the

Common Property must be reported to the Trustees or duly authorised agents of the Body

Corporate.

#### **14.4 Fires, Fireworks and Braais**

14.4.1 No Owner or Occupier of a Section shall allow any form of fire inside his Unit or on

the Common Property, unless the fire is within an apparatus expressly designed for this purpose. It is strictly prohibited to throw cigarettes, cigarette stubs, matches etc, out of windows or anywhere on the Common Property. All flammable items

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must be kept in a safe place, and out of reach of children.

14.4.2 The Owners or Occupiers of any Section shall not make fires or use barbeques or braais in a manner or at a time which causes inconvenience to the Owners or Occupiers of any other Section or causes danger to the building or any part thereof or to any property of any other person or on designated leisure areas. The Owner will remain liable for any damages caused.

14.4.3 Fireworks, or anything resembling fireworks, are strictly prohibited on the Development, at all times.

#### **14.5 Fire Extinguishers / Fire Hydrants**

14.5.1 No Owner or Occupier of a Section shall tamper with or allow to be tampered with,

any fire-fighting equipment on the Common Property, nor shall they park or allow to be parked, any vehicle so as to obstruct access to any fire hydrant on the Common Property.

14.5.2 No fire extinguisher, firehouse or similar device anywhere in a Section or anywhere

on the Common Property shall be used for any other purpose except for emergency purposes and shall not be used for the washing of motor vehicles, watering of gardens or any other unauthorised purposes.

#### **14.6 Cultural Celebrations**

14.6.1 Any Owner or Occupier that wishes to engage in a cultural activity that may impinge

on the rights of another Owner, not of the same cultural persuasion, must obtain written approval from the Trustees prior to engaging same.

14.6.2 No Owner or Occupier of a Section shall be allowed to set off any size or make, of fire cracker or any pyrotechnics device under any circumstances or at any time.

#### **14.7 Power Tools and Equipment**

14.7.1 The Owner or Occupier of any Section shall not cause, or permit to be used anywhere in the building (including his / her Section) or on the Common Property (including exclusive use areas) any hand or power tools, implements, equipment, devices, utensils or any other things whatsoever which interfere with the radio or television reception, or which create any sound or noise, smells or fumes to which any other Owners or Occupiers may reasonably object.

14.7.2 No Owner or Occupier may store or permit to be stored any power tools and equipment and / or similar items, including work benches and worktables, in or on any part of the Common Property or his / her exclusive use area, including but not limited to the balcony and balcony area of his / her Section, and the carport designated to him / her for use.

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#### **15. MAINTENANCE AND LANDSCAPING**

15.1 The Owner or Occupier of a Section shall at all times and at his / her own expense, maintain his / her Section and exclusive use area in good, clean, hygienic, tidy and habitable order and condition, and shall be responsible at his / her own expense for:

15.1.1 all interior painting, maintenance, remedying of blockage of sewers and sanitary equipment and connections as well as electrical wiring, plug sockets, lighting and switchgear or the like;

15.1.2 remedying of water pipes in his Section;

15.1.3 remedying of excessive water overflow of any equipment or installation of his Section and exclusive use area.

15.2 All Owners and Occupiers shall be obliged at all reasonable times to grant access to the

Trustees, their staff and agents, to their Sections or exclusive use area/s and any other part

of the Common Property, for the purpose of performing any necessary maintenance, effecting repairs or performing other such tasks and matters incidental thereto.

15.3 All Owners and Occupiers shall be obliged at all reasonable times to grant access to their

Sections, exclusive use area/s or other parts of the Common Property, to the Trustees, their

staff and agents, for the purpose of enforcing these Rules or when it is reasonably necessary in the best interests of the Association.

15.4 The Owners and Occupiers of any Section shall not interfere with flora, wild or cultivated,

growing on Common Property other than the individually fenced garden areas. All Owners

and Occupiers shall ensure that such areas are not despoiled in any way.

15.5 All Owners and Occupiers shall be obliged at all reasonable times to grant access to the

Trustees, their staff and agents, to the fenced garden areas on the Common Property to inspect the garden areas and remove any plants, shrubs or trees which in the opinion of the

Trustees, are either unsuitable, classified as invasive plant species or harmful to the environment.

15.6 No plants, trees or shrubs on the Common Property may be trimmed without prior written

approval from the Trustees. It is recorded that certain of the flora are protected by law and

that any Owner or Occupier interfering with or damaging, or in any other way acting in

respect of such flora contrary to the provisions of the law, may be liable for prosecution.

15.7 No Owner or Occupier shall cause to be planted in the gardens on the Common Property or

any part of any exclusive use area, any plants, shrubs, or trees without first obtaining written consent of the Trustees. It is specifically recorded that no Owner or Occupier shall

plant any creepers or creeping plants, or plants which have a tendency to creep, in their exclusive use area unless he ensures that it does not encroach on his neighbour or the Development's electric fence and/or boundary wall/s, and keeps it cut back at all times.

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15.8 Dumping of garden refuse, such as grass clippings or leaves onto any neighbouring property or park/green belt, wetland or Common Property is strictly prohibited.

15.9 Building any form of structure, such as stairs or a pathway into and/or on any part of the

Common Property, park/green belt, or wetland is strictly prohibited.

15.10 Releasing any exotic wildlife onto the park/greenbelt or Common Property is strictly

prohibited.

15.11 The installation of wall mounted lights and/or spotlights facing and shining directly into

the park/greenbelt or Common Property by Owners, Occupiers or residents is strictly prohibited.

15.12 The Owner or Occupier is required to notify the Trustees and security if any repairs /

maintenance will be carried out at his / her Section so as to avoid any unauthorised entry

to the Section or Development.

## **16. ERADICATION OF PESTS**



An Owner or Occupier of a Section shall keep his Section free from white ants, other wood

destroying insects and other pests and insects and to this end shall permit the Trustees, the

Managing Agent and their duly authorised agents or employees to enter his / her Section from

time to time for the purpose of inspecting the Section and taking such action as may be reasonably necessary to eradicate such pests. The cost of inspection, eradication of any such

pests as may be found within the Section, shall be borne by the Owner of this Section involved.

## **17. NOISE AND NUISANCE**

### **17.1 Noise**

17.1.1 No Owner or Occupier of a Section shall make or allow to be made, an excessive noise at any time, to disturb the other Units (excessive shall be at the discretion of the Trustees).

17.1.2 Residents should at all times act in such a manner that it will be possible for other occupants and residence to study unhindered in an academic atmosphere.

17.1.3 Residents should at all times act in such a manner that no discomfort or disturbance of peace is caused to the Residents of the Development or other residences in the area.

17.1.4 Residents must maintain silence in their rooms and building specifically between

22h00 and 08h00 as well as in and around the communal areas of the property.

We can request you to be quiet at any time, should you be a disturbance to any of the Residents.

17.1.5 No parties or social events, where non-Residents are invited or allowed on the premises, at any time without the approval of the Trustees or Managing Agent. As

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a rule, the playing of music at such events will cease at 22:00 and the Body Corporate has the right to limit the amount of non-residents attending the party or social event.

17.1.6 Save for the Body Corporate or an Owner or Occupier of a commercial section, a residential Owner or Occupier of a Section is not permitted to run a generator.

17.1.7 The Owner or Occupier of any Section shall not play, or cause, or permit to be played, any radio, television set, tape or other recording device, amplifier or any musical instrument in or about the building in a manner or at a time which causes inconvenience to any other Owner or Occupier, or to any other person.

17.1.8 Permission from the Trustees, in writing, is required in advance for any parties or large social gatherings that are to take place at the recreation area.

17.1.9 The Trustees reserve their rights in terms of disconnection of services in the event that the above clause 17.1.8 is not adhered to.

17.1.10 No hobby or any activity, such as meetings, gatherings, weddings, funerals, etc. of

any nature is permitted to which other Owners or Occupiers might object and which will create nuisance or disturbance (whether through noise or otherwise) to other Owners or Occupiers and must comply with all relevant council by-laws.

17.1.11 Parking in the event of a social gathering, shall be dependent on demarcated parking bay availability. It would be the responsibility and cost of the Resident hosting the social event to provide a security guard to watch the cars Parked outside the Development, should there be no more demarcated visitor parking bays available within the Development.

17.1.12 In the event of a social gathering, it is not the duty of the authorised agents or contractors' staff to clean up afterwards. It is the responsibility of the Resident hosting the social gathering.

17.1.13 At the Trustees' discretion, actions will be taken should noise levels and behavior

be considered unacceptable and in contravention of the Development Rules.

17.1.14 The Trustees will impose the necessary procedures for the for the submission by

the Trustees of complaints and penalties, where appropriate, against a transgression of the rules set out in this Clause 17.

## **17.2 QUIET TIMES**

17.2.1 Quiet time must be maintained at least during the following times:

17.2.1.1 Sunday to Thursday 22:00 – 8:00

17.2.1.2 Friday to Saturday 24:00 – 8:00

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17.2.2 The Body Corporate may make arrangements with regard to quiet times that lay down

stricter requirements than those set out above.

## **17.3 ACADEMIC QUIET TIMES**

17.3.1 No parties or social events, where non-Residents are invited or allowed on the premises, shall be allowed on the premises 2 (two) weeks prior to the commencement of the exam and during exam period.

17.3.2 Academic Quiet time must be maintained at least during the following times, 2 (two)

weeks prior to the exam period and during the exam period:

17.3.2.1 Sunday to Thursday 20:00 – 8:00

17.3.2.2 Friday to Saturday 20:00 – 8:00

## **17.4 Hooters**

No Owner or Occupier of a unit shall sound or allow to be sounded any hooter or the like within the Development unless in a case of emergency.

## **17.5 Visiting Children**

17.5.1 No children shall be allowed to reside on the premises without prior arrangement/permission from the trustees. Children sleeping over is not encouraged but will be considered on a case-by-case basis. For these purposes a

child shall be anyone under the age of 18 unless they have a valid student card for the University of Stellenbosch.

17.5.2 No Owner or Occupier of a Section shall allow any child to make noise in the immediate vicinity of any Section. Children are to be requested to keep the noise levels as low as possible.

17.5.3 Children may not play in the roads, driveways or at the entrance of the gate or surrounding gate area. Parents will be responsible for the full account of any repairs undertaken when children in any way damage property, whether this is private or the Development Common Property. Children must be encouraged to not play near or around any Parked vehicles to prevent any possible damage to private property.

17.5.4 The comfort of all Residents must be respected, and failure to comply with any of the above regulations shall result in a penalty per occurrence.

## **18. OWNER RESPONSIBLE**

The registered Owner of a Section shall be responsible for the conduct of all Occupiers of their

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Section, their family, employees, guests, and service providers. The registered Owner shall

provide Occupiers with the Rules of the schemes and shall always ensure compliance with the

Rules. Should the Rules be transgressed, the Body Corporate shall act against the Owner, who

shall be responsible for all costs and damages associated with same.

## **19. STAFF, EMPLOYEES AND STUDENT LEADERS**

### **19.1 Employment**

19.1.1 The members of staff that are required by the Body Corporate to maintain the premises shall be employed and dismissed by the Trustees only, at their own discretion.

19.1.2 No Owner or Occupier of any Section, other than a person/s empowered by the Trustees to do so, shall instruct the staff (gardeners, security, cleaning, etc.) to do any work in the exclusive use area/s and / or Common Property, or to run errands or to do private work, except in a case of emergency.

19.1.3 All members of staff employed by the Body Corporate are employed to perform tasks pertaining to the running and upkeep of the Development; they may under no circumstances be used by any Owner or Occupier to perform private tasks whilst they are on duty or post them being on duty.

## **19.2 Complaints**

An Owner or Occupier who has a complaint about any member of staff is to report it in writing

to the Trustees and is not to reprimand any member of staff or person in any way.

## **19.3 Domestic Employees**

Any Owner or Occupier of a Section is not permitted to employ a domestic employee. The

Management Company will make available a cleaning service and the Owner or Occupier of a

Section must make arrangements with the Management Company to provide a cleaning service

to the Owner or Occupier's Section.

## **20. VISITORS**

### **20.1 Visiting Hours**

20.1.1 Visitors will only be allowed during the specific visiting hours which will change from time to time based on the circumstances.

20.1.2 Visitors will be Monday – Sunday from 9:00 to 22:00.

### **20.2 Rules regarding visitors**

20.2.1 Residents will be allowed a maximum of 2 (Two) visitors per Unit.

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20.2.2 Residents must ensure that directly affected parties such as their immediate neighbors are informed and accommodated in the event of visitors in the Unit.

20.2.3 All visitors must be hosted and accompanied by a Resident. No unaccompanied visitors are allowed in the Development.

20.2.4 All Residents are responsible for the actions of their visitors, including damages and other related disturbances.

20.2.5 All visitors will be bound to the Rules of the Body Corporate and the Lifestyle Centre.

20.2.6 The Lifestyle Centre excluding any public-facing spaces including but not limited to the restaurant, is for the use and enjoyment of the Owners and Residents of the Development only and no visitor will be permitted to access the Lifestyle Centre without prior permission. For the avoidance of doubt, no Visitor will be allowed in the library. The public-facing spaces will be accessible to the public from the outside of the Development.

## **21. LETTING OF UNITS**

### **21.1 Notification**

Should any Owner let their property, they shall advise the Trustees in writing, prior to occupation by the Occupier, of the name, address, contact details and Identities of the Occupier and the period of the lease and provide the Trustees with a copy of the lease agreement.

### **21.2 Rules**

The Owner shall provide the lessee with a hard copy of all Conduct Rules and other Rules as an addendum to the lease agreement. The Owner shall ensure that the lease agreement binds the lessee to the said Rules. The registered Owner will become liable for any contravention of the Conduct Rules by the Occupier, visitor or employee.

### **21.3 Obligation**

21.3.1 No letting or parting with occupation shall in any way release the Owner from any of their

obligations to the Body Corporate, in terms of the Rules, Act and the Management Act, as

amended.

21.3.2 Notwithstanding any contract or arrangement entered into between an Owner of a Unit

and a tenant or any other person, the Trustees reserve the right of admission and the right

to evict a tenant or any other person visiting for disorderly conduct of whatsoever nature or any behavior which shall constitute or cause a nuisance or any inconvenience to any Owner/Occupier or other person without recourse.

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### **21.4 Short-term letting**

21.4.1 Save for the Exclusive Residential Pool, the Owner acknowledges that no short-term letting

(periods of less than 3 consecutive months) will be allowed within the complex including

AirBnB, Booking.com or the like.

21.4.2 Notwithstanding any other rule contained herein, any Owner that contravenes this rule

shall be liable for a penalty equal to at least double their monthly levy.

## **22. BUSINESS OR LEISURE ACTIVITIES**

### **22.1 Sales**

No auction, jumble sale or any other sale shall be held on or in the property.

### **22.2 Advertisements**

Notwithstanding clause 22.1, no signs for Units that go on show may be displayed for the

showday.

## **23. COMPLAINTS**

Should an Owner or Occupier have a complaint of whatever nature, this should be directed to

the Trustees in writing. No verbal complaints will be entertained.

## **24. UNLAWFUL CONDUCT, ALCOHOL AND SMOKING**

### **24.1 Smoking**

24.1.1 No smoking is allowed on common property, which includes any electronic smoking devices,

except in specific designated area.

24.1.2 The use of vaping devices shall be allowed in open-air and non-covered areas as well as in

the Unit.

24.1.3 No smoking is allowed in the Unit. No cigarette butts shall be littered on the premises.

Offences relating to this will be regarded as serious offences. A fine of R2000-00 will be imposed for littering of cigarette butts.

### **24.2 Alcohol**

24.2.1 Alcohol is allowed in the Development but must be consumed in moderation. Any abuse of

alcohol or drunken behaviour on the premises will be regarded as a serious offence and dealt with by the Body Corporate and its Members in a manner that it deems fit.

24.2.2 A Resident is not allowed to consume or be in possession of alcohol on the common

property other than specially designated areas or unless prior written consent is obtained

from the Body Corporate.

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24.2.3 A Resident is not allowed to consume or be in possession of alcohol in the Lifestyle Centre

save for being a patron in the restaurant, unless with prior written consent from the owner

of the Lifestyle Centre.

24.2.4 A Resident who has excessively consumed alcohol or is being rowdy, may be fined and

restricted from the use of both the shared facility and the Lifestyle Centre.

24.2.5 A Resident who has become rowdy, as a result of excessive consumption of alcohol, will be

vacated from the area and issued a fine.

24.2.6 Any visitor who is behaving badly as a result of alcohol consumption will be immediately

removed from The-WEB and their future access to The-WEB will be restricted.

24.2.7 If a Resident causes a disturbance due to excessive alcohol consumption and/or a complaint

is filed against the Resident, the Body Corporate will have the right to impose a fine and may restrict access to the Lifestyle Centre.

### **24.3 Illegal/illicit substances**

24.3.1 No illegal and/or illicit substances are allowed on the premises. The Body Corporate and its

Members reserves the right to contact law enforcement should they suspect the use of such

substances, by the owner or occupier to be directly or indirectly involved or related.

24.3.2 **NO DRUGS** are allowed on the premises. The Body Corporate reserves the right to send in a

drug squad should they suspect any illegality. If a Resident is to be found to be directly or

indirectly (i.e., by way of a visitor) involved or related to by way of possession or use to any

unlawful drug or substance on the premises, the agreement of lease will be terminated

immediately.

## **25. USE AND CHANGES TO UNITS**

25.1 All Residents must ensure that their activities and those of visitors on the common property,

or any part thereof, with all its associated services, facilities, and conveniences, are always

carried out with reasonable and careful attention, and with full consideration for other

Residents of the complex in accordance with the Rules, the regulations, the Act and additions

to such Act.

25.2 Residents who employ workers to work on their units are responsible for the behaviour of

such workers and must make sure that their workers and/or employees always comply with

the Rules.

25.3 Occupation of all Units are limited to one person per bedroom; except for shared studios.

25.4 Changes to water pipes, electric wiring, and any plumbing that a Resident wishes to make

inside a flat are subject to written approval from the Trustees. Any such approved changes

must be made by a qualified person who complies with the regulations and laws of the local

authority.

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## **26. VIOLATION OF RULES, WARNINGS, HEARINGS AND FINES**

### **26.1 Penalty Levies and Conduct Transgression Levies and Application**

26.1.1 In the event of a contravention or continued contravention of the Rules and Regulations,

the guilty party shall be liable to Penalty Levies and/or Conduct Transgression Levies in

accordance with the Schedule of Penalty Levies and Conduct Transgression Levies and may

be denied access to certain areas, which includes access to the Lifestyle Center and/ or may

be disconnected from the WiFi service.

26.1.2 The Trustees reserve their rights in terms of the imposing of Penalty Levies and Conduct

Transgression Levies and/or removal of any of the above in the event of non-compliance.

26.1.3 These Penalty Levies and Conduct Transgression Levies are to be added to the Owner's

levy statement.

## **27. AESTHETICS/BREACH GUIDELINES**

For the purpose of achieving an aesthetically pleasing and desirable outlook of the scheme, the

following categories will be referred to for the purpose of categorising any breach of the Rules:

**27.1 Category 1** – major breaches: these may include:

27.1.1 Boundary walls, fences, and hedges.

27.1.2 Exterior paint colours of the Section, buildings, and walls.

27.1.3 Interfering in the park/green belt and common areas of the Development.

27.1.4 Paving and driveways.

**27.2 Category 2** – minor breaches: these may include:

27.2.1 TV aerials, air conditioners, trunking.

27.2.2 Section numbers.

27.2.3 Building rubble.

27.2.4 Screens.

27.2.5 Lack of maintenance.

**27.3 Penalty Levies, Conduct Transgression Levies and Application.**

In all instances where the Owner or Occupier has breached the guidelines, the Owner will be

notified in writing and given 30 (thirty) days to remedy the situation. The Owner may make

representation in writing to request clarification or to dispute the breach. If the breach is not

rectified within one month of notification then the appropriate penalty will be added to their

levy account and backdated to the date of notification.

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## **28. BREACH OF THE SCHEMES' RULES OR PROVISIONS OF THE ACT**

28.1 If the conduct of an Owner or an Occupier of a Section or his or her visitors in the opinion of the

Trustees constitutes:

28.1.1 a nuisance, or

28.1.2 a breach of any duty of the Owner under section 13 of the Management Act, or

28.1.3 a breach of any of the duties of Owners and Occupiers of Sections contained in Prescribed Management Rules, or a breach of any of the Conduct Rule

The Trustees may furnish the Owner or Occupier with a written notice which may in the discretion of the Trustees be delivered by hand, email or registered post. In the notice the

particular conduct which constitutes a nuisance must be described or the provision which

has allegedly been contravened must be clearly indicated, together with the date of the transgression (if applicable), and the recipient must be warned that if he or she persists in

such conduct or contravention, a Penalty Levy or Conduct Transgression Levy will be imposed on the Owner of the Section.

28.2 If the Owner or Occupier nevertheless persists in that particular conduct or in the

contravention of that particular Rule or section of the Management Act, the Trustees may

convene a meeting of Trustees to discuss the matter.

28.3 A written notice by which the alleged offender (whether Owner or Occupier), is informed of

the purpose of the meeting and invited to attend, must be sent to the Owner or Occupier at

least 7 (seven) days before the meeting is held. At the meeting the Owner or Occupier must

be given the opportunity to present his or her case, but except in so far as he or she is permitted by the Chairperson, he or she may not participate in the conduct of the meeting.

28.4 After the Owner or Occupier has been given the opportunity to present his or her case, and if

75% (seventy five percent) of the Trustees present at the meeting agree that a provision of

the schemes' Rules or the Management Act has been breached, the Trustees may by majority

decision impose on the offender a Penalty Levy and/or Conduct Transgression Levy in accordance with the Schedule of Penalty Levies and Conduct Transgression Levies as set out

in Annexure B The monetary amount of the Penalty Levies and Conduct Transgression Levies

in terms of this Rule shall, at the request of any Owner, be reviewed at any annual general

meeting and may be amended by majority vote.

28.5 A Trustee shall not be entitled to participate at the meeting referred to in the above clause in

that capacity if she or he or any person who occupies the Section which she or he owns or

represents is the alleged offender.

28.6 Any Penalty Levies and Conduct Transgression Levies imposed in terms of this clause may, if

it is not paid by the offender within 14 (fourteen) days after the offender has been notified of

the imposition of the Penalty Levies and Conduct Transgression Levies, be added to the levies which an Owner is obliged to pay in terms of section 3(1) of the Management Act and

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claimed by the Trustees as part of the monthly installments payable by the Owner.

28.7 The Trustees and/or Managing Agents shall have the right to restrict the sale of utilities,

being the supply of electricity, water, and gas (if applicable), either due to non-payment of

levies or due to non-compliance with the Rules.

## **29. TRUSTEES' DECISION IS BINDING**

29.1 In respect of the interpretation of these Rules, and all decisions to enforce these Rules, the

Trustees' decision shall be binding on Owners and Occupiers. Any dispute arising out of any

interpretation or enforcement of these Rules may be referred to the Community Schemes

Ombud in terms of the CSOS.

29.2 An Owner or Occupier of a Section, who contravenes any Conduct Rule, shall be liable to pay

Penalty Levies and/or Conduct Transgression Levies.

29.3 If because of a breach of any of these Conduct Rules by any Owner or Occupier, the Trustees

instruct an attorney, the defaulting Owner or Occupier shall be liable for all costs and charges

of whatsoever nature on an attorney client scale incurred by the Trustees as a result thereof.

29.4 The Trustees have been elected by the Owners to fulfill a duty. Any interference in this

regard or any threats made to and / or any damage to the Trustees person or property will

result in legal action.

### **30. WRITTEN PERMISSION**

For purposes of these Rules written permission by the Trustees shall only be valid if signed

by any 2 (two) Trustees.

### **31. LOAN FACILITY**

The Trustees are authorised to borrow funds against the security of levy debtors, to ensure

the timeous payment by the Body Corporate of all invoices received from municipalities,

local authorities, and other service providers. Such a loan facility shall never exceed in value

the total amount owed by levy debtors at any point in time. Should the Trustees deem it necessary to loan any amount in excess of the levy debtors, whether in the form of a term

loan or overdraft facility, same must be approved by a special resolution of Owners, which

resolution shall clearly state the maximum amount which may be loaned, as well as the time

frame over which the loan shall be repaid.

### **32. INDEMNITY**

The Owner or Occupier of a Section, their family, employees, guests and service providers

shall indemnify, defend and hold harmless the Trustees of the Body Corporate, from any and

all claims, demands, suits, actions, proceedings, loss, cost and damages of every kind and

description; including any reasonable attorneys' fees and / or litigation expenses caused by,

arising out of, or contributed to in whole or in part, by reasons of any act, omission, professional error, fault, mistake, or negligence of the Board of Trustees, their employees,

agents, representatives, or sub-contractors' employees, agents or representatives in

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connection with or incidental to the performance of their duties. The duly elected Trustees of

this Body Corporate shall under no circumstances be held personally liable whilst performing their duties as Trustees unless found to be grossly negligent.

### **33. SCHEDULE OF PENALTY LEVIES AND CONDUCT TRANSGRESSION LEVIES**

33.1 The Schedule of Penalty Levies and Conduct Transgression Levies is attached hereto marked

“B” and may be updated from time to time by the Trustees when deemed necessary.

33.2 Fines and/ or Penalties may not be equal to or more than the applicable monthly levy of the

owner of the unit concerned.

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### **ANNEXURE “B”**

#### **SCHEDULE OF TRANSGRESSIONS AND PENALTIES APPLICABLE TO OWNERS, RESIDENTS AND**

#### **/ OR TENANTS**

In all instances, penalties may be applied to both the transgressor and the responsible homeowner

or tenant who takes responsibility for the activities of his/her spouse/partner, children, guests,

visitors, employees, workers and or contractors.

#### **CATEGORY OF**

#### **TRANSGRESSION**



**1st Offence 2nd Offence 3rd Offence**

**Value**

**of fine**

**Period of**

**ban**

**Value**

**of**

**fine**

**Period of**

**ban**

**Value of**

**fine**

**Period of ban**

1. Finances and Levies R1000 R2000 R3000
2. Security R500 R1500 R2500
3. Animals, Reptiles and Birds R1000 R2000 R3000
4. Refuse Disposal R1000 R2000 R3000
5. Vehicles R500 R1500 R2500
6. Pathways R500 R1500 R2500
7. Parking R1000 R2000 R3000
8. Damage, alterations, additions to  
the common property  
R1000 R2000 R3000
9. Appearance from the exterior  
.  
R500 R1500 R2500
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10. Signs and notices R1000 R2000 R3000

- 11. Littering R500 R1500 R2500
- 12. Laundry R1000 R2000 R3000
- 13. Storage of flammable material  
and other dangerous acts  
R1000 R2000 R3000
- 14. Maintenance and landscaping R500 R1500 R2500
- 15. Eradication of pests R500 R1500 R2500
- 16. Noise and nuisance R1000 R2000 R3000
- 17. Conduct of third parties and  
visitors  
R1000 R2000 R3000
- 18. Staff and employees R500 R1500 R2500
- 19. Letting of units R500 R1500 R2500
- 20. Business or leisure activities R500 R1500 R2500
- 21. Facilities R500 R1500 R2500
- 22. Private parties R500 R1500 R2500
- 23. Aesthetic breach – Category 1 R500 R1500 R2500
- 24. Aesthetic breach – Category 2 R500 R1500 R2500
- 25. Breach of the Schemes' Rules or  
provisions of the Act  
R500 R1500 R2500

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